The legal-exposure landscape

When a negligently activated change splits the chain and people lose money,
more parties are exposed than most realize:

Negligence / neg. misrep.	§4.1	Releasing activation code with known bugs and promoting its adoption; §552 is the cleaner route around the economic-loss rule (Biakanja on contested facts).
Tortious interference	§4.2	A proponent with documented economic exposure who pushes a change that splits chains — especially if the promotion looks instrumental rather than principled.
Fiduciary duty	§4.3	Unsettled, but Tulip Trading (UK Court of Appeal, 2023) confirmed the question is justiciable (claim discontinued 2024); the developer's process determines the answer.
Pool operators	§4.4	Pools owe care over signaling, but broad-discretion pool terms blunt the contract/covenant route; exposure runs through what the pool tells its miners.
Regulatory & exchange	§4.5	Splits trigger income recognition on forked coins (Rev. Rul. 2019-24), custodial conflicts, and exchange listing calls — not hypothetical; this happened in 2017.

Following the Section 3 standards is a strong defense against every route.
Compliance is the defense; the score is the exposure (§4.0).